

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Srinagar **PS:** ACB Srinagar
Year: 2024
FIR No: RC1232024A0005 **Date:** 21/11/2024

2. **Acts & Sections:**

Acts	Sections	R/W Section
IPC	120-B	420 & 409
PC Act-1988 (As amended in 2018)	13(2)	13(1)(a)

3. **Suspected offences:** Criminal Conspiracy, Cheating, Criminal Breach of Trust, Criminal Misconduct

(a) **Occurrence of offence:**

Day:

Time Period:

From Date:

2023

To Date: 2024

(b) **Information Received at PS:**

CBI ACB Srinagar

Date:

20/11/2024

(c) **General Diary Reference:**

Entry No.:

05

Date:

21/11/2024

Time: 17:07:59

4. **Type of Information:** Written

5. **Place of Occurrence:**

Gamud Gadakhud, Tehsil Sumbal, District Bandipora

(a) **Direction & distance from PS:**

North West 30 KM approx.

Beat No.:

(b) **Address:**

Plot No.:

Jammu and Kashmir
Bank Limited

Area:

Branch Office Gamud Gadakhud, Tehsil
Sumbal

City:

Gamud Gadakhud

Pin:

193501

State:

Jammu and Kashmir

District:

Bandipore

(c) **In case, outside the limit of this Police Station, then**

Name of PS:

District:

6. **Complainant / Informant:**

Complainant 1

(a) **Name:** Mr. Jamsheed Hussain

(b) **Father's/Husband's Name:**

(c) **Date/Year of Birth:**

(d) **Nationality:** INDIAN

(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
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(f) **Occupation:** Official Incharge Vigilance Deptt.

(g) **Address:**

Plot No	Area	City	State	District	Pin
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7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1**Name:** Ms.Mohammad Yousuf Khan(1), **Father/Husband name:** Ghulam Mohammad Khan**Address:****Accused 2****Name:** Ms.Auzra Mustafa(2), **Father/Husband name:** Ghulam Mustafa Rather**Address:****Accused 3****Name:** Mrs.Nazima Bano(3), **Father/Husband name:** Mohammad Ashraf**Address:****Accused 4****Name:** Mr.Zahid Hussain Najar(4), **Father/Husband name:** Ghulam Hassan Najar**Address:****Accused 5****Name:** Ms.Asie Jan(5), **Father/Husband name:** Mohammad Yousuf Yatoo**Address:****Accused 6****Name:** Mr.Ghulam Ahmad Dar(6)**Address:****Accused 7****Name:** Unknown Public Servant(s) & Private Person(s)**Address:****8. Reasons for delay in reporting by the complainant/informant:**

No delay

9. Particulars of properties stolen:

Item Name	Age of Property	Estimated Value (in INR)
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10. Total value of property stolen:**11. Inquest Report/U.D. Case No., if any:****12. First information contents:**

A complaint vide Ref: JKB/VIG/2024-464 dated 20.11.2024 has been received from Shri Jamsheed Hussain, Employee Code 009966, Official Incharge Vigilance Department, J&K Bank Ltd., Corporate Office, Srinagar regarding misappropriation of bank funds at Gamud Gadkhud Branch of J&K Bank Ltd. in implementation of Govt. sponsored PMEGP loans.

It is alleged that Prime Minister Employment Generation Program (PMEGP) is a central sector scheme that offers financial assistance to create employment opportunities in rural as well as urban areas and the scheme is administered by the Ministry of Micro, Small and Medium Enterprises and implemented by the Khadi & Village Industries Commission (KVIC). Loan amounting to Rs.10 lakhs can be availed by the eligible persons under PMEGP from banks & NBFCs. Vigilance Officer of J&K Bank Ltd. had observed that payments have not been made to genuine suppliers in the PMEGP cases. There is a suspicion of involvement of some brokers, who in connivance with the borrowers, unknown bank officials and other private persons have misappropriated Bank funds and used them for purposes other than the intended use. The Supervision & Control(S&C) Division Kashmir of J&K Bank have conducted investigation into above matter, which revealed that out of the 20 cases scrutinized, round tripping of funds back to borrowers or close relatives of the borrowers have been found in 06 PMEGP loan accounts. Thus, prima facie connivance of brokers with unknown bank officials, the borrowers and other private persons is revealed in misappropriation of bank funds.

The allegations mentioned in the complaint prima facie disclose that unknown officers/officials of the J&K Bank, Gamud Gadakhud Branch office in conspiracy with above named borrowers, unknown brokers and unknown others have cheated the J&K Bank and misappropriated the bank funds and caused wrongful loss to the bank and wrongful gain to themselves.

The above facts prima facie disclose commission of cognizable offences made punishable U/Section 120-B of IPC r/w Sec. 420 & 409 of IPC and Sec. 13(2) r/w Sec. 13(1)(a) of the PC Act, 1988 (as amended in 2018) as amended vide Jammu and Kashmir Reorganization Act 2019 and substantive offences thereof. Hence, this FIR is registered.

Original complaint Ref: JKB/VIG/2024-464 dated 20.11.2024 is enclosed herewith. The same may be read as part and parcel of this FIR.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO:

FIRDOUS AHMAD BHAT

Rank:

INSPECTOR (ACB Srinagar)

No:

184772

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point of jurisdiction.

Attached documents:

Document name

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

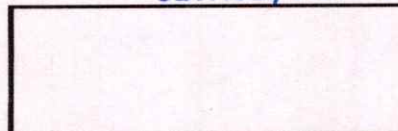
Signature of Officer
in-charge Police Station

Name: Rahul Sharma 21.11.24

Rank: DY. INSP. GENERAL OF
POLICE (ACB Srinagar)

Rahul Sharma, IPS
DIG/HOB
CBI ACB, SRINAGAR

15. Date and time of dispatch to the Court:



Vigilance Department

Ref: JKB/VIG/2024-464

Dated: 20-11-2024

To

The Deputy Inspector General of Police,
CBI-ACB Srinagar,
Guest House No. 06,
Near MLA Hostel, Srinagar - 190001.

Subject: - Complaint regarding misappropriation of bank funds at Bank Branch
Gamud Gadkhud of J&K Bank Ltd. in implementation of Govt. sponsored
PMEGP loans.

Sir

It is submitted that Prime Minister Employment Generation Program (PMEGP) is a central sector scheme that offers financial assistance to create employment opportunities in rural as well as urban areas. The scheme is administered by the Ministry of Micro, Small and Medium Enterprises (MoMSME) and implemented by the Khadi & Village Industries Commission (KVIC). The loan amount of Rs.10.00 lakhs can be availed by the eligible persons under PMEGP from nationalized banks as well as other private & public sector banks including J&K Bank Ltd. & NBFCs.

The J&K Bank Ltd. through an investigation by Vigilance Officer observed that payments have not been made to genuine suppliers in the PMEGP cases. There is a suspicion of involvement of some brokers who in connivance with the borrowers, unknown bank officials and other private persons have misappropriated Bank funds and used them for purposes other than the intended use.

That Supervision & Control (S&C) Division Kashmir of J&K Bank have conducted investigation into above matter, which revealed that the following out of the 20 cases scrutinized 06 PMEGP loan accounts have witnessed round trip of funds back to borrower or close relative of the borrower, which has revealed prima facie connivance of brokers with the borrowers, unknown bank officials and other private persons in misappropriation of bank funds.



PA

S.no	Name of the account holder	A/C	Limit sanctioned
1.	Ms. Auzra Mustafa D/O Ghulam Mustafa Rather R/O R/O Rakhi Shilvath Sumbal Sonawari Bandipora , Kashmir 193501 Mob: 7006180870	072926727-305 072902136-391	₹6.65 lac
2.	Mr. Mohammad Yousuf Khan S/O: Gh Mohammad Khan R/O: R/O: Inderkoot Sumbal Sonawari Bandipora , Kashmir 193501 Ph. 9797742189	072926727-354 072902136-291	₹6.86 lac
3.	Mrs. Nazima Bano W/O Mohammad Ashraf R/O Ganastan Bandipora , Kashmir 193501 Ph. 7889976635	072926727-365 072902136-351	₹4.75 lac
4.	Mr. Zahid Hussain Najar S/O Ghulam Hassan Najar R/O Imam Bada Nowgam Payeen Sumbal Bandipora , Kashmir 193501 Ph. 7006469698	072926727-370 072902136-359	₹7.46 lac
5.	Ms. Asie Jan D/O: Mohammad Yousuf Yatoo R/O; Raki E Shilvat Bandipora , Kashmir 193501 Ph. 9622137362	072926727-397	₹4.75 Lac
6.	Mr. Ghulam Ahmad Dar Son In Law Of Gh Rasool Marazee R/O Nowgam Sumbal Bandipora , Kashmir 193501 Ph. 9596275871	072926727-404 072902136-345	₹4.56 Lac

Thus, above facts prima-facie make it clear that the unknown bank persons alongwith some brokers have dishonestly and fraudulently misappropriated the bank funds causing wrongful loss to the bank. It is therefore, requested that investigation may be conducted in above mentioned loan accounts.

Yours Sincerely,

Mr. Jamsheed Hussain
Employee Code 009966
Official Incharge Vigilance Deptt.
J&K Bank Ltd. Corporate Office, Srinagar.



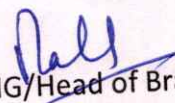
Ends. No. 2344/RC1232024A0005/CBI/ACB/SGR.

Dated: 21.11.2024

Copy to:-

1. The Hon'ble Special Judge, Anti-Corruption (CBI Cases): Kashmir, Srinagar.
2. The Joint Director/HoZ, CBI Chandigarh Zone, Sector 30, Chandigarh.
3. The CVO, Jammu and Kashmir Bank Ltd., Corporate Office, Srinagar.
4. Shri Firdous Ahmad Bhat, Inspector, CBI, ACB, Srinagar.

5. ☒ Guard File.


DIG/Head of Branch
SPE:CBI:ACB:Srinagar.

21.11.24

Rahul Sharma, IPS
DIG/HOB
CBI ACB, SRINAGAR